

ORDINANCE NO. \_\_\_\_\_

ENTITLED: "AN ORDINANCE AMENDING SPECIFIED SECTIONS WITHIN CHAPTER 8.68, CAMPING ON PUBLIC PROPERTY, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO INCREASE THE ASSOCIATED PENALTIES AND REQUIRE REMOVAL FROM THE PREMISES IF IN VIOLATION OF THE CODE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 8.68.025, Sleeping on sidewalks, streets, alleys or within doorways prohibited, Section 8.68.030, Camping on campsites on public property prohibited; exception; penalty, and Section 8.68.035, Camping allowed with lawful permit; permit administration, of Chapter 8.68, Camping on public property, of Title 8, Health and Safety, of the City of Cheyenne, Wyoming, are hereby amended to read:

**Chapter 8.68 - CAMPING ON PUBLIC PROPERTY**

**8.68.025 - Sleeping on sidewalks, streets, alleys or within doorways prohibited.**

- A. No person shall sleep on any public sidewalk, street or alleyway at any time as a matter of individual and public safety.
- B. No person ~~may~~ **shall** sleep in any pedestrian or vehicular entrance to public or private property abutting a public sidewalk.
- C. Any person who violates this section is guilty of a misdemeanor punishable by a fine of ~~fifty dollars (\$50.00)~~ **not more than seven hundred fifty dollars (\$750.00), imprisonment for not more than six (6) months, or both.** Any person found in violation of this section ~~may also~~ **shall** be immediately removed from the premises. ~~Upon conviction for a violation of this section, if a defendant demonstrates that after receiving the citation and before the hearing, they meaningfully engaged with public or private resources or service providers to address the reasons that led them to be in violation, the court shall consider that information when determining the appropriate sentence.~~

**8.68.030 - Camping and campsites on public property prohibited; exception; penalty.**

- A. It is unlawful for any campsite to be situated on public property of the city. Every unlawful campsite shall be subject to abatement by the department in accordance with Section 8.68.040 of this chapter.
- B. No person shall use or otherwise occupy any public property of the city of Cheyenne for camping purposes unless the person holds a valid permit issued in accordance with Section 8.68.035 of this chapter.

- C. Any person who violates subsection (B) of this section is guilty of a misdemeanor punishable by a fine of not more than ~~fifty dollars (\$50.00)~~ seven hundred fifty dollars (\$750.00), imprisonment for not more than six (6) months, or both. Any person found in violation of subsection (B) of this section ~~may also~~ shall be immediately removed from the premises. ~~Upon conviction for a violation of subsection (B) of this section, if a defendant demonstrates that after receiving the citation and before the hearing, they meaningfully engaged with public or private resources or service providers to address the reasons that led them to be in violation, the court shall consider that information when determining the appropriate sentence.~~

#### **8.68.035 - Camping allowed with lawful permit; permit administration.**

- A. Notwithstanding the prohibitions imposed under Section 8.68.030 of this chapter, a person may camp on public property of the city upon the issuance of a camping permit by the city clerk and payment of the associated permit fee as provided by this section. All applications for a camping permit shall be submitted to the city clerk on forms provided by the clerk and shall be submitted not less than ten (10) business days before the date the camping will occur. No permit may be issued under this section except upon the approval of the clerk and the director of the community recreation and events department.
- B. Before the issuance of any camping permit under this section, the director of the community recreation and events department shall:
1. Determine and keep a record of all parcels of public property of the city that are appropriate for camping and for which a camping permit may be issued under this section. In identifying any parcel for camping under this paragraph, the director shall only select those parcels, and the locations in each parcel, that will not overburden the surrounding community in terms of noise, traffic and environmental impact;
  2. Prescribe the attendant camping permit fee for camping on a parcel of public property, which fee may vary by parcel of public property, but which shall only be in an amount sufficient to defer the costs and impacts associated with the camping activity; and
  3. Prescribe permit conditions, the intent of which shall be to provide for the proper maintenance and administration of the parcels upon which camping occurs and to protect public health and safety of the camping participants and the community.
- C. Any person camping on a parcel of public property without a permit as provided by this section shall be guilty of a misdemeanor punishable by a fine of not more than ~~fifty dollars (\$50.00)~~ seven hundred fifty dollars (\$750.00), imprisonment for not more than six (6) months, or both. Each day a person camps without a permit shall constitute a separate ~~a~~ and distinct violation of this section.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

\_\_\_\_\_  
KYLIE SODEN, CITY CLERK

Published: \_\_\_\_\_  
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